Re: Conferral on First Amended Complaint

From kdturnage@protonmail.com <kdturnage@protonmail.com>

To Gray, Victoria (USAAZ)<Victoria.Gray2@usdoj.gov>

Date Monday, December 29th, 2025 at 3:49 PM

Ms. Gray,

I am in receipt of your December 29, 2025, correspondence regarding the Government's intent to file a motion to dismiss and your request for an extension of time to respond to the amended motion for preliminary injunction.

1. Second Amended Complaint Filed
On December 29, 2025, I will file a Second Amended Complaint, which will supersede the previous complaint. It addresses, with greater specificity, the factual basis for all statutory claims raised, including Title VII, the ADEA, the ADA (and/or Rehabilitation Act), FMLA, the Whistleblower Protection Act, and related constitutional and statutory violations.

The SAC sets forth in detail the protected disclosures, adverse personnel actions, temporal proximity, specific officials involved, and statutory violations, with citations to supporting regulations and precedent. Accordingly, I believe it satisfies all pleading requirements under Federal Rule of Civil Procedure 8(a).

2. Extension Request Is Moot and Unsupported
Because a Second Amended Complaint has now been filed, the Government's request to delay responding to the prior version of the preliminary injunction motion is procedurally moot. However, I note for the record that I do **not intend to agree to any future motion for additional time**.

Even if the extension request were not moot, it would still fail on the merits. The Government has not demonstrated **Good Cause** as required under the Local Rules or Rule 6(b). The only justification offered is that more time is needed to review the complaint. If further review is indeed needed, then a motion to dismiss would be premature, as a thorough review would not yet have been completed.

It is internally inconsistent to claim the complaint is insufficient while simultaneously asking for time to review what has allegedly already been evaluated.

3. No Intent to Amend Further
I do not intend to amend the complaint again. I will oppose any motion to dismiss and respectfully submit that the Court is fully equipped to rule on the pleadings as filed.

Respectfully,

Kevin D. Turnage
Pro Se Plaintiff
kdturnage@protonmail.com
901-220-8664

On Monday, December 29th, 2025 at 8:20 AM, Gray, Victoria (USAAZ) <Victoria.Gray2@usdoj.gov> wrote:

Mr. Turnage:

In accordance with the Court's Order (Doc. 18), Defendant again notifies you that we intend to file a motion to dismiss the first amended complaint based on Federal Rule of Civil Procedure 12(b)(1) and 12(b)(6). The Court requires that we confer on the 12(b)(6) portion of the motion to dismiss.

The Defendant again believes that you have not pled sufficient facts to state a claim for/against the following:

The only proper party in this action is the head of the agency. We will move to dismiss claims against Debra Ward Lund, Kathy Dill, Clinton Pope, Candace Lee, Naomi Hixson, Jason White, Brandi Benjamin, Endreya McCabe, Todd Pingel, Dora Birdshead, Ty Reidhead, Governing Body of the Phoenix Indian Medical Center.

Counts I and II, Title VII – You have not pled sufficient facts to state claims under Title VII.

Count III, ADEA - You have not pled sufficient facts to state a claim under the ADEA.

Count IV, ADA – You have not stated a claim under the ADA. The ADA provides no remedy to former federal employees. *See* 42 U.S.C. § 12111(5)(B) (excluding the federal government from the definition of "employer" under the ADA); *Daniels v. Chertoff*, 06-CV-2891-PHX-JAT, 2007 WL 1140401, at * 2 (D. Ariz. 2007) (dismissing ADA claim against federal defendants).

Please let me know by tomorrow, December 30, 2025, whether you will amend your complaint. If you do not agree, or if we do not hear from you, we will file the motion to dismiss for failure to state a claim and lack of jurisdiction by the January 2, 2026, deadline.

Finally, because the first amended complaint and amended motion for preliminary injunction (which we believe to be Doc. 36-1), make the same claims under the WPA and seek very similar, if not the same relief, the government would like to respond to both at the same time. This will save the Court's resources because it will not have to review duplicative arguments made by both parties. Would you please agree to an extension of time for the government to respond to the amended PI to 14 days from your filing of a second amended complaint?

Respectfully,

Victoria H. Gray
Assistant U.S. Attorney

United States Attorney's Office | District of Arizona
40 N. Central Avenue, Suite 1800, Phoenix, Arizona 85004
Direct: 602-514-7752

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